

25STCV38414 25STCV38414

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-07

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Case Number: 25STCV38414 Hearing Date: August 7, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:15 PM on August 6, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 6, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Decedent

was fatally stabbed in the neck while a patron at Defendant's 7-Eleven.

Plaintiffs move for an order deeming admitted requests for admission propounded upon Defendant Megdal

Silver Lake, LLC, and for the imposition of sanctions.

TENTATIVE RULING

Plaintiffs Ninoska Rodriguez, individually and as the Successor-in-Interest to decedent Omar Evenor Rodriguez, deceased, et al.'s motion to deem admitted requests for admission propounded upon Defendant Megdal Silver Lake, LLC is MOOT. Defendant has served verified responses. (Declaration of Michael McGaughey, ¶ 9; Exh. 1.) All objections are OVERRULED as having been waived.

If Plaintiffs desire further responses, they may bring a motion to compel further responses. If Defendant desires relief from waiver of objections, Defendant must bring a separately-noticed motion pursuant to Code Civ. Proc. § 2033.280(a).

Plaintiff's request for sanctions against Defendant Megdal Silver Lake, LLC only is GRANTED^[1] in the reduced amount of \$810 for 1.5 hours at \$500/hour plus a \$60 filing fee, which is the reasonable amount of attorney's fees in connection with a motion to deem admitted. Defendant has not demonstrated that it acted with substantial justification nor that the imposition of sanctions are unjust (Code Civ. Proc. § 2030.290(c)), because Defendant is deemed to have knowledge of the discovery that was served upon the agent for service by way of imputed knowledge. (O'Riordan v. Federal Kemper Life Assurance Co. (2005) 36 Cal.4th 281, 288-89.)

[1]

The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.

(Cal. Rules Court, Rule 3.1348(a).)